

HOUSE BILL 2662

By Martin B

AN ACT to amend Chapter 402 of the Acts of 1901; as amended and rewritten by Chapter 131 of the Private Acts of 2004; Chapter 119 of the Private Acts of 2006; Chapter 36 of the Private Acts of 2007; Chapter 12 of the Private Acts of 2023; and any other acts amendatory thereto, relative to the City of Lexington.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 402 of the Acts of 1901, as amended and rewritten by Chapter 131 of the Private Acts of 2004, Chapter 119 of the Private Acts of 2006, Chapter 36 of the Private Acts of 2007, Chapter 12 of the Private Acts of 2023, and any other acts amendatory thereto, is amended by deleting SECTION 10 and substituting:

SECTION 10. The Mayor shall be the chief executive officer of the City and shall have supervision of all City affairs; require such reports from the officers and employees of the City as he or she may reasonably deem necessary to carry out his or her executive responsibilities; preside at all meetings of the Board, unless absent, in which event the Vice-Mayor shall preside; be responsible for the execution of the laws or ordinances of the City and have such other authority and perform such other duties as the Board may from time to time prescribe; execute all contracts as authorized by the Board; communicate information needed, and recommend measures to the Board to expedite the business of the City; call special meetings of the Board upon adequate notice to the Board and public; state the matters to be considered at the special meetings and the action of the Board shall be limited to those matters submitted; make appointments to boards and commissions as authorized by law; submit the annual budgets of the City to the Board for their adoption by ordinance; and perform such other duties as may be designated or required by the Board.

The Mayor may suspend an employee for misconduct or dereliction of duty as a means of reprimand. An employee may appeal a suspension to the Board. The decision of the Board shall be final.

The office of Mayor shall be a full-time position, and the Board may from time to time by ordinance establish certain functions and duties of this office that shall not be inconsistent with this charter.

The Mayor shall serve as a member of all boards and committees created by the Board. The Mayor shall have a voice, but shall only vote in the event of a tie, then he or she shall cast the vote breaking the tie at meetings of the Board and at any board or committee meeting created by the Board.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Lexington. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 2.